

24SMCV06059 24SMCV06059

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-09

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Case Number: 24SMCV06059 Hearing Date: July 9, 2026 Dept: P

Tentative

Ruling

Shahid

Sheikh, et al. v. Assil Gaur Eye Institute, et al., Case No. 24SMCV06059

Plaintiff's

Motion for Leave to Amend to File First Amended Complaint

Hearing

Date: July 9, 2026

Background

Plaintiffs

Shahid Sheikh (individually "Sheikh") and his wife Gabriele Gasafy (collectively "Plaintiffs") sue Defendants Assil Gaur Eye Institute and Dr. Kerry Assil for medical negligence, lack of informed consent, and loss of consortium arising from cataract surgery. The Sheikhs allege that Sheikh agreed to have Dr. Assil place a specific type of intraocular lens in his eye, but that Dr. Assil placed a different intraocular lens during surgery, leaving Sheikh nearsighted in his right eye and causing visual distortion. (Complaint, ¶¶ 17-19.)

On

December 12, 2024, Plaintiffs filed the complaint.

On January

21, 2025, Defendants answered.

On May 7,
2026, Defendants filed a motion for summary judgment.

On May 22,
2026, Plaintiffs filed a Motion for Leave to amend, seeking to add four claims for false advertising, breach of fiduciary duty, intentional concealment/fraud, and violation of the UCL. On June 25, 2026, Defendants filed opposition. On June 30, 2026, Plaintiffs replied.

Trial in
this matter is set for August 31, 2026.

Arguments

Plaintiffs

argue that recently-produced surgical center records and Dr. Assil's deposition revealed facts that would support their four new claims, specifically evidence that Dr. Assil billed both Sheikh and his insurance for the intraocular lens and misrepresented that the lens was not covered by insurance. (Motion for Leave to Amend, pp. 5-7.)

Defendants

argue that they produced the evidence Plaintiffs cite a long time ago, and that leave to amend two months before trial will prejudice them because they will not be able to complete discovery in time. (Opposition, p. 4-8.)

In reply,

Plaintiffs argue that the new evidence specifically revealed that the procedure originally referenced implantation of a monofocal lens, later indicated that the lens would be a multifocal lens, and finally implanted a monofocal lens. (Reply, p. 4.) Plaintiffs contend that this case is distinguishable from Defendants' cited authority because they do not bring this motion on the eve of trial. (Id. at p. 7.)

Motion

for Leave to Amend

The trial

court has discretion to allow amendments to pleadings in the furtherance of

justice. (Code Civ. Proc. § 473, subd. (a)(1).) “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading.” (Code Civ. Proc. § 576.) “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945 [citations omitted].) “An application to amend a pleading is addressed to the trial judge’s sound discretion.” (Ibid. [citations omitted].) A judge may deny a motion for leave to amend where a moving party has been dilatory in seeking leave to amend and such delay has prejudiced the opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490 (“Hirsa”).) “It is difficult to understand how [a named defendant] can be prejudiced by amendment to add an additional theory of liability against it.” (Ibid.)

“[I]t is an abuse of discretion to deny leave to amend where the opposing party [is] not misled or prejudiced by the amendment.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 (“Kittredge”).) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation. (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448 (“Solit”).)

Analysis

Plaintiffs

contend that they did not delay moving for leave to amend because they had to wait until they had complete discovery to evaluate these new claims. In response, Defendants assert that they produced this evidence on April 25, 2025. (Hummasi Decl., ¶ 4.) Following a review of the evidence, the documents that Plaintiffs describe as newly-discovered are included in the records that Defendants produced on April 25, 2025, specifically documents describing insurance coverage and costs to be borne by the patient and describing the intraocular lens as both monofocal and multifocal. Plaintiff offers no evidence of more recently produced discovery that provides significantly more or significantly different information than what Defendants disclosed in April 2025.

This case

is set for trial in less than two months. Plaintiff’s four proposed causes of action would require significant additional discovery because they concern

Defendants' business practices outside of the scope of Sheikh's September 23, 2026, surgery. Widening the scope to include Defendants' advertising and business records would prejudice Defendants because it would require continuing trial and would add significant additional discovery costs.

Conclusion

Plaintiff's

Motion for Leave to Amend is DENIED for failure to justify delay and because it would prejudice Defendants.